

Abdul Ajij v. State of U.P. & Others

Allahabad High Court (Lucknow Bench) · Single Judge · 7 May 2020 · 2020 SCC OnLine All 538 · Writ - C No. 5708 of 2020 · **Listing order — matter listed for hearing; affidavits to be filed**

HEADNOTE

Listing/interlocutory order (heard in chamber during the COVID-19 lockdown). The petitioner challenged an order rejecting his appeal under Section 127 of the Electricity Act, 2003 on the ground that he had not deposited half of the assessed amount as required by Section 127(2), contending that he had deposited the amount prescribed under the U.P. Electricity Supply Code, 2005. The Court directed the matter to be listed and affidavits filed; no view was expressed on whether a Code-prescribed deposit satisfies the Section 127(2) pre-deposit.

HOLDING-UNITS

INTERPLAY · EA2003::127

Whether a Code-prescribed deposit satisfies the s.127(2) pre-deposit — reserved

QUESTION

(Listing) Does depositing the amount prescribed under the Supply Code satisfy the s.127(2) requirement of depositing half the assessed amount to maintain a s.127 appeal?

HOLDING

Not decided. The appeal had been rejected below for non-deposit of half the assessed amount under s.127(2); the petitioner claimed to have deposited the Code-prescribed amount. The Court merely listed the matter and directed affidavits, expressing no view on the point. ¶ 3-7

FLAG Listing/interlocutory order only — the s.127(2) pre-deposit question is reserved.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A DEPOSIT UNDER THE SUPPLY CODE SATISFIES THE S.127(2) PRE-DEPOSIT

The central question; left open at the listing stage pending affidavits. ¶ 3-4